

EDUCATIONAL ASSESSMENT AND EXAMINATIONS SERVICE (EAES)
A NATIONAL EXIT EXAMINATION PREPARED FOR STUDENTS OF
ETHIOPIAN LAW SCHOOLS
ACADEMIC YEAR 2021/2022

June 29, 2022

Time Allowed : 3:00 Hours

PART II: PUBLIC LAWS

INSTRUCTIONS:

1. ATTEMPT ALL QUESTIONS ON THE BASIS OF SPECIFIC INSTRUCTIONS INDICATED IN EACH SECTION.
2. LAWS THAT CAN BE BROUGHT TO THE EXAM ROOM ARE THE UN CHARTER, THE VIENNA CONVENTION ON THE LAW OF TREATIES, THE FDRE CONSTITUTION, THE CRIMINAL CODE, THE INCOME TAX PROCLAMATIONS THE VAT PROCLAMATION, THE ENVIRONMENTAL POLLUTION CONTROL PROCLAMATION, AND THE EIA PROCLAMATION.
3. WHENEVER APPROPRIATE, BUTTRESS YOUR ARGUMENTS WITH PERTINENT LEGAL PROVISIONS.
4. PUT YOUR ANSWERS IN A SEPARATE ANSWER SHEET ATTACHED TO THE EXAM.

DO NOT TURN THIS PAGE UNTIL YOU ARE ALLOWED TO DO SO

SECTION I. MULTIPLE CHOICES (30 MARKS)

CHOOSE THE BEST ANSWER FOR EACH QUESTION FROM THE ALTERNATIVES GIVEN.

1. Which one of the following is NOT vital to secure legitimacy of constitution-making process?
 - A. Participation of persons who are aware of the role they play in the formulation of the constitution.
 - B. Broad-based and accommodative consultation with different segments of the society.
 - C. Deliberate empowerment of the civil society in articulation of aspirations and visions of the society.
 - D. The process must be open and transparent throughout the process of constitution making.
 - ☒ E. Engaging citizens with due consideration of expert disregarding the laymen.

2. Which one of the following alternatives does not fall in the elements of rule of law?
 - A. The people must be ruled by the law.
 - B. The law should be supreme.
 - ☒ C. The law should be retrospective.
 - D. The law should be efficient.
 - E. Courts should deliver impartial justice.

3. Which one of the following is true about the House of the Federation in Ethiopia? *C Not*
- ☒ A. The House of the Federation is the ultimate decision-maker in constitutional interpretation. ✓
 - B. The House of the Federation is a second chamber which has the power of legislation. ✗
 - C. The members of the House of the Federation are elected every five years through universal suffrage. ✗
 - D. The House of the Federation is a judicial organ empowered to settle a dispute among regions. ✗
 - E. The House of the Federation represents the will of Ethiopian citizens.
4. An interpretation based on an innate sense of justice regardless of what the written law might provide is called:
- ☒ A. Doctrinal Interpretation.
 - B. Prudential Interpretation.
 - C. Textual Interpretation.
 - ☒ D. Equitable Interpretation.
 - E. Natural Interpretation.
5. Identify a statement that best distinguishes a federal form of government from a decentralized unitary state.
- A. The federal government and the constituent units can act directly on citizens.
 - B. The constituent units have no constitutional base.
 - C. The final decision on some matters, such as defense, lies on the constituent units.
 - D. The constituent units are coequal with the central government in most respects.
 - ☒ E. The sources of power for each level of government emanates from a constitution.

6. Cooperative federalism is criticized by many because _____.
- A. It does not give equal prerogative to all members of the federation.
 - B. It gives each level of government power to control its respective executive organ.
 - ☒ C. It results in the establishment of a unitary system in the end.
 - D. It results in a democratic deficit by blurring accountability.
 - ☒ E. It affects the federal process since it makes the center stronger than the states.
7. Identify the correct match based on the **FDRE** Constitution.
- A. National Defense-Concurrent Power.
 - ☒ B. Commercial Code-Exclusive Federal Power.
 - C. Penal Code-Shared Power.
 - D. Land Law Administration-Exclusive State Power.
 - E. Monetary Policy-Framework Power
8. The undesignated power of taxation included in the FDRE Constitution implies that _____.
- ☒ A. The two houses joint session determine which level of government can exercise the power of taxation.
 - B. The two houses jointly determine the base and rates of the newly identified tax.
 - C. The two houses jointly determine how the proceeds obtained from such power is divided between the levels of government.
 - D. It is viewed under the residual powers of the states. ✗
 - E. The states determine the tax base and rate to a newly identified tax. ✗

9. Which of the following is **true** about inadvertent negligence?
- A. The accused does not foresee the harm as certainty but only as possibility.
 - B. The accused does not intend to commit the crime but accepts its consequences. ✗
 - C. An accused acting by imprudence.
 - ☒ D. Acting by a criminal lack of foresight.
 - E. The accused is aware that his act may cause harm but he disregards this consequence. ✗
10. Which of the following acts constitute a justifiable act?
- ☒ A. Necessity.
 - B. Disciplinary measures.
 - C. Acts in respect of Military duties.
 - D. Professional duties.
 - E. Acts done to secure lawfully recognized private rights.
11. Which of the following is a role of a medical expert in the determination of a criminal liability?
- A. Advising the court on the extent of the criminal punishment against the accused.
 - B. Investigating the extent of the accused's criminal responsibility and possible punishment.
 - C. Analyzing the medical results with pertinent provision of the criminal law.
 - D. Advising the court on the types of curative or protective measures that should be taken.
 - ☒ E. Identifying the perpetrator of a crime and the extent of harm inflicted against the victim.

12. One of the following is different from the others.
- ☒ A. Public Apology.
 - ☐ B. Fine.
 - ☐ C. Imprisonment.
 - ☐ D. Capital punishment.
 - ☐ E. Confiscation and sequestration.
13. When the accused is unable to pursue his criminal activity to the end due to external factors, the stage in the commission of the crime is known as _____.
- ☐ A. Complete Attempt.
 - ☐ B. Impossible attempt.
 - ☐ C. Preparation.
 - ☒ D. Incomplete attempt.
 - ☐ E. Active Repentance.
14. Which of the following is a more appropriate criminal measure that may be imposed on young offenders?
- ☐ A. Fine.
 - ☒ B. Admission to corrective centers.
 - ☐ C. Simple imprisonment.
 - ☐ D. Rigorous impressment.
 - ☐ E. Compulsory labor.
15. Which one of the following types of income is **NOT** encompassed in taxable income?
- ☐ A. Income from smuggling activity.
 - ☒ B. Casual income.
 - ☐ C. Capital Receipt, except gains on transfer of capital asset. ✓
 - ☐ D. Income received in kind. ✗
 - ☐ E. Fees for services rendered. ✗

16. Who is the actual payer of Value Added Tax in Ethiopia?
- ☒ A. Consumers of the goods and services.
 - B. Seller who is registered for VAT.
 - C. Retailers registered for VAT.
 - D. Whole seller registered for VAT.
 - E. Both retailers and whole sellers.
17. Which one of the following types of tax is an additional tax rate added onto the rate of an existing tax?
- A. Excise tax.
 - B. Surtax.
 - C. Surplus tax.
 - ☒ D. Turnover tax. — cases
 - E. Value added tax.
18. Any compensation received or receivable by a victim of northern Ethiopia civil war destruction is:
- ☒ A. Fully exempt from tax.
 - B. Taxable.
 - C. Exempt up to 15 % of ETB.
 - ☒ D. Exempt except to the extent of amount received or receivable which has been allowed as deduction for any loss damage caused by such destruction.
 - E. Deductible and subject to taxable.
19. Which of the following is correct about Ethiopian tax jurisdiction?
- A. Foreigners are required to pay tax from incomes they generate elsewhere.
 - B. Residents are required to pay income tax from incomes they receive in Ethiopia only.
 - C. Non-residents are required to pay tax from their worldwide income.
 - ☒ D. Residents of Ethiopia pay tax with respect to worldwide income.
 - E. All Ethiopians are required to pay tax to Ethiopian government wherever they reside.

20. Which one of the following taxation canons suggests relatively small cost of tax administration against the tax revenue to be collected?
- A. Horizontal equity.
 - ☒ B. Efficiency.
 - C. Certainty.
 - D. Simplicity.
 - E. Convenience.
21. Which one of the following best expresses customary international law?
- A. Customary international laws have emerged by mere fact of repetition of states acts.
 - B. For proof of the existence of a given custom, the burden of proof lies on the International Court of Justice.
 - ☒ C. Customary international laws emerge by consistent state practice accepted as a law.
 - D. Individual States official ceremonies can constitute customary international law.
 - E. Official activities of comity and courtesy can constitute customary international law.
22. If a permanent member of the SC is absent or abstains during voting in the Security Council resolution, what does such absence or abstention imply?
- A. That state is rejecting the passing of the resolution.
 - B. That state is concurring with the passing of the resolution.
 - ☒ C. That state is accepting the resolution with reservation.
 - D. That state is striking the agenda from the list of issues to be considered.
 - E. That state is delaying the voting on the issue presented for discussion and approval.

23. Which one of the following is true about International Court of justice (ICJ)?
- A. ICJ has the jurisdiction to entertain all cases presented by member states of the UN.
 - B. ICJ can automatically assume jurisdiction without the requirement of determining the consent of the disputing states.
 - C. ICJ can entertain cases presented from non-members of the United Nations automatically.
 - ☒ D. ICJ can give advisory opinion if requested by organs of United Nations provided that the issue is under their competence.
 - E. ICJ can entertain cases presented from all international organizations.
24. Which one of the following can be a subsidiary source of international human rights law?
- A. International Human Rights Treaties.
 - B. Customary International Law.
 - ☒ C. Judicial Decisions.
 - D. General Principles of Law.
 - E. Convention on the Rights of the Child.
25. Which one of the following regional systems of human rights protection is relatively least developed one?
- A. The African Human Rights System.
 - B. The European Human Rights System.
 - C. The Inter-American Human Rights System.
 - ☒ D. The Arab Human Rights System
 - E. The UN Human Rights System.
26. The set of rights that provide conditions necessary for the wellbeing and prosperity of individuals are referred to as:
- ☒ A. Civil Rights.
 - B. Political Rights.
 - C. Economic and Social Rights.
 - D. Cultural Rights.
 - E. Due Process Rights.

27. Which one of the following rights is considered to be absolute?
- A. The right to life.
 - B. Freedom of expression.
 - C. The right to property.
 - D. The right to liberty.
 - ☒ E. Freedom from slavery.
28. Which of the following multilateral environmental agreement seeks to protect wetlands of international importance?
- A. ~~Basel Convention.~~
 - B. ~~Ramsar Convention.~~
 - ☒ C. Bamako Convention.
 - D. Rotterdam Convention.
 - E. Vienna Convention.
29. Which of the following is an economic instrument that can be used to ensure environmental Protection?
- ☒ A. Environmental impact assessment.
 - B. Carbon taxation.
 - C. Licensing requirement.
 - D. Trade restrictions.
 - E. Product standard.
30. Which stage of EIA determines whether a proposed project requires EIA or not?
- ☒ A. Decision making.
 - B. Scoping.
 - C. Screening.
 - D. Mitigation and impact management.
 - E. Implementation and follow-up.

SECTION II. MATCHING (10 MARKS)

CHOOSE THE BEST MATCH FOR THE ITEMS UNDER 'A' FROM THE ITEMS UNDER 'B'.

A

1. First Past the Post System **D**
2. Supremacy clause **E**
3. Mostly federal exclusive power **J**
4. Corruption **N**
5. Moral offender **G**
6. Income or profit from the sale of capital assets **L**
7. Economic circumstance of taxpayers **B**
8. Third generation rights **K**
9. World Human Rights Day **M**
10. Protecting the environment for human's sake **O**

B

- A. Mixed Electoral System
- B. Ability to pay
- C. Anthropocentrism
- D. Winner-Takes-All
- E. Federal law prevails over states
- F. Deductible item
- G. Master minded offender
- H. Socio-economic right
- I. UN's Establishment Day
- J. Foreign relations
- K. Solidarity rights
- L. Capital gains
- M. December 10
- N. Special crime
- O. Eco-centrism
- P. Ordinary crime

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SECTION III: GIVE SHORT ANSWERS QUESTIONS (10 MARKS)
GIVE SHORT ANSWERS TO THE FOLLOWING QUESTIONS.

1. Mention at least two areas of power sharing through Consociation. (5 MARKS) *- division of power Supremacy of E, with*
2. Mention at least two distinct features of the Ethiopian federation. (5 MARKS)

The preamble of E P star

SECTION IV: ESSAY PART (20 MARKS)

② Ete pr self det UP to state

1. Write a short essay of not more than 20 lines discussing the reasons why preparatory acts are, in principle, not punishable both in Ethiopia and elsewhere. (10 MARKS)
2. Cultural relativism asserts that human values, far from being universal, vary in great deal according to different cultural perspectives. However, when taken to its extreme, cultural relativism poses great deal of dangers to human rights. Write a short of essay of not more than 20 lines explaining what these dangers are. (10 MARKS)

Essay

1 - preparatory acts are not punishable under criminal code Art 26 CD due to the preparator intention is not clearly know. 2nd if the preptor punish is preparator preparatory state it increase the ^{Commission} participation of offender to commit the crime.

② cultural relativism abuse human right unlike it depend on the culture of the society. it is affect to protect human right violation such as violation of right to education, early marriage, violation of human honor and reputation and so on.
- it Challenge to apply international human right instrument but such as UDHR, ICER, ICESCR.

20

SECTION V. HYPOTHETICAL CASES (30 MARKS)

READ THE FOLLOWING CASES VERY CAREFULLY AND ANSWER THE QUESTIONS THAT FOLLOW.

Case I (15 MARKS)

~~treaties~~ → one part

✓

For the last two years, about twenty states have been negotiating a treaty on what they considered to be the most sensitive national security issue to all of them. In the process, a lot of debates have taken place which, luckily, led to the settlement of many controversial issues. However, the states have not yet been able to agree on one particular issue due to state AB's adamant objection to its inclusion in the treaty. Indeed, repeated efforts were made by many to convince state AB to agree to the inclusion of the issue in the treaty but to no avail. Consequently, some states suggested that state AB should be removed from the negotiation since, in its presence, the treaty could not cover all the issues they want to be covered. Moreover, states that have suggested AB's removal from the negotiation (treaty) argue that the subject-matter state AB is objecting to is fundamental to the treaty. Yet, there are many other negotiating states which argue that the issue (subject-matter) state AB is objecting to is not as such fundamental to the treaty and, hence, state AB can enter a reservation and stay in the treaty. Indeed, in the interest of remaining in the treaty, state AB is willing to align itself with this position and enter a reservation to move forward with the other states. However, those states which support AB's exclusion still think that state AB cannot enter a reservation as what it is objecting to is fundamental to the treaty and reservation relating to such fundamental matter would not be compatible with the object and purpose of the treaty itself. Now, it is clear that the remaining 19 states are divided into two blocs on whether or not reservation on what state AB refuses to accept is compatible with the object and purpose of a treaty.

If you are approached by two of those states to advise them on who should determine the compatibility of a given reservation with the object and purpose of a treaty, what would you tell them?

None Conclusion On the law of
treaties
reservation is not allowed
if affect purpose and

Object of
The treaty

Case II (15 MARKS)

Suppose 'Y' is a small city in Ethiopia conventionally classified into North and South to connote the rich and slum-dwellers, respectively. Unjustly, all of the solid waste disposal sites owned by private Landfill Company (named Company "C") are located in the southern part of the city, causing different health problems to the poorer sections of the community besides the damage caused to the environment. Cognizant of this fact, Ato "X", who is an environmental lawyer, living in the Northern part of the city repeatedly requested the concerned environmental protection agency to take action against Company "C" to force it to take necessary rectification measures including the closure of the landfill site. However, the environmental protection agency argued that the issue is not the concern of individuals coming from the North part of the city like Ato "X". Thus, the agency stated that it would not look into the requests of Ato "X", who is not from the affected section of the community, until he brings a certificate of representation from the community in the south. Disappointed by the position of the Agency, Ato "X" wants to initiate a court action against Company "C" and the environmental protection agency.

Based on the above facts of the case, try to respond to the following questions.

- A) Which type of environmental principle has been infringed due to the concentration of the landfills in the Southern part of the city? (5MARKS)
- B) Do you think the argument of the Agency regarding the right of Ato "X" to request it to take action against Company "C" is tenable under Ethiopian environmental laws? (5MARKS) yes ~~At 11~~ no b/c every individual has right to
- C) Does Ato "X" have a standing right to sue the Agency under Ethiopian environmental law? (5MARKS) yes ~~At 11~~ of Environmental Pollution Control Proclamation

Every individual has right to
THE END Claim for 2nd environment
damage
inv: action for people's right
used